Two important factors played a role in the high court's decision-making process. First, the court was sensitive about the task of interpreting or commenting on religious practices. Chief Justice Chagla, himself a Muslim, expressed 'very considerable hesitation' to speak 'about the Hindu religion'.[9] Second, the court was also conscious of the compromise that the Constituent Assembly arrived at in the form of Article 44. For Justice Gajendragadkar, the assembly's impatience in seeking a uniform civil code was only 'tempered by considerations of practical difficulties'.[10] For Chief Justice Chagla, Article 44 laid down a directive that would have been expected to be achieved 'within a measurable time'.[11] Although the judges were conscious of the significance of their decision – effectively insulating uncodified personal law from the scrutiny of fundamental rights – they did so in the belief that it would remain relevant only for a brief period.

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The Narasu judgement offered up a mixture of contradictions. On the one hand, the high court upheld the Bombay Prevention of Hindu Bigamous Marriages Act, a seemingly liberal, progressive law that was directed towards eradicating and punishing a social evil. The court was clearly 'motivated by public concern'.[12] However, the court's chosen method of arriving at that destination – by holding that all personal law was protected from rights-based challenges – had the potential to safeguard regressive religious practices indefinitely.

Was the court driven to a binary choice by the 'ingenuity' of C.K. Shah's argument – uphold progressive legislation and risk safeguarding regressive religious practice, or strike down progressive legislation and leave open the possibility of challenging regressive religious practice in the future? The court could have escaped this binary by arriving at the same decision in respect of Muslims as it did for Parsis and Christians – that even though polygamy is no longer recognized under Muslim personal law, there were good reasons for making it a criminal offence among Hindus but not Muslims. This was a missed opportunity.